

Authorship Without Equilibrium

Deliberative Justice and the Generative–Relational
Ground of Self-Legislation

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Executive Summary. Nadia Mazouz’s deliberative theory of justice rightly insists that those subject to a judgement of justice must also be among its *authors*: a fully deliberative theory may not smuggle in an externally fixed conception of the good (a *Festsetzung*) that is never itself brought before those it claims to orient. We take up this commitment and develop it. We first state our reading of her central concepts; we then re-interpret them within a generative–relational framework; we add an explanation her account does not supply; and we draw the result into a positive thesis in practical ethics. The pivot is the figure of the author: when the author and the affected party coincide, what keeps self-legislation from collapsing into self-reference? We argue that this coincidence is coherent only on a specific ontological footing—a *generative–relational* account of value in which authorship is distributed across a relation and self-adjudication is built in as an anti-self-deception mechanism. On that footing the deliberative “good” is not merely a normative requirement but an ontological fact: external legislators were always redundant. We further argue that the dynamical form of such authorship is *not* a reflective equilibrium—a static fixed point—but a generative spiral carrying a non-trivial accumulated remainder (a positive holonomy). The distinction between genuine and forged deliberation is then the distinction between a cycle that returns value to its participants and one that extracts it. We close by showing that two hard cases—illness and the “trolley problem” inside an intimate relation—are unintelligible on the equilibrium picture yet tractable on ours.

1 Introduction

Liberal political philosophy is committed to a form of neutrality about the good life, yet it cannot fully exclude the good from a theory of justice. Every major deliberative theory of justice therefore takes a stance on how the good enters the just. Nadia Mazouz’s *Was ist gerecht? Was ist gut?* diagnoses the three canonical stances—Rawls’s *complementarity* model, Habermas’s *integration* model, and Scanlon’s *open complementarity* model—as variants of a single failure: each fixes the conception of the good by an external, theory-internal stipulation (*Festsetzung*) reconstructed by the philosopher rather than deliberated with those the theory is meant to orient. Such theories are, in her phrase, only *half* deliberative: the just half is deliberated, the good half is quietly posited. Her constructive proposal is the *perspectival model*: the just and the good are not two domains with distinct objects but two perspectives from which one and the same object—an action or an institution—is assessed. Correspondingly her concept of justice is three-place: a relation among the *affected*, the *addressed*, and the *authors*.

This paper takes up Mazouz’s diagnosis and her perspectival reframing as something to build on rather than to refute. Our aim is fourfold, and we state it plainly at the outset.

- A1. To articulate our reading of her central concepts**—the half-deliberated good, the perspectival model, and above all the three-place concept of justice with its figure of the *author*.
- A2. To re-interpret those concepts within a generative–relational framework:** to show what the author, and the demand to forgo external stipulation, become when restated in terms of value that emerges from, and continues itself within, a relation.
- A3. To offer an additional explanation her framework does not supply:** an account of how an affected party can be an author of the judgement that binds her without collapse, by way of a relational self-legislation whose self-grounding structure we connect to what one of us has elsewhere called *relational divinity*.¹
- A4. To advance, on this basis, a positive thesis in practical ethics:** that ethical and justice judgements are best understood as emerging bottom-up from generative–relational existence, with relational self-legislation as their form of reason, rather than as descending from an external conception of the good.

The figure of the *author*—the affected party who is at the same time an author of the judgement that binds her—names a coincidence that is philosophically non-trivial. Kant already saw that self-legislation is paradoxical: a will that gives itself a law it could also revise threatens to give itself no law at all. Mazouz requires the affected to be authors; what makes this coincidence stable, rather than collapsing into self-reference, is a question her theory raises but does not settle. Answering it, we argue, calls for an ontology that her framework is compatible with but does not itself develop—and supplying that ontology is how aims A2–A4 are met.

The specific claims through which we pursue these aims are the following.

- C1. The authorship question.** The perspectival model requires, but does not itself spell out, an account of how an affected party can be an author of the judgement binding her without that authorship collapsing into self-reference. This is a constitutive question for the model, not a marginal one—and a generative–relational ontology answers it.
- C2. Relational, not solitary, self-legislation.** Self-legislation is coherent only when authorship is *distributed across a relation*. Solitary self-legislation degenerates into self-deification and hence self-deception; relational self-legislation builds self-adjudication in as an internal anti-self-deception mechanism.
- C3. From requirement to ontology.** Once authorship is relational, Mazouz’s normative demand to forgo external *Festsetzung* is upgraded to an ontological fact: an external legislator (a “big Other” standing outside the deliberation) was never a missing guarantor but a redundant projection. Justice judgements emerge bottom-up from the relation.
- C4. Emergence is not equilibrium.** The implicit dynamics of reflective equilibrium is descent to a static fixed point. If value genuinely emerges bottom-up and resists closure, its attractor cannot be a fixed point. The appropriate form is a *generative spiral*: a closed path in the space of judgements that nonetheless accumulates a non-trivial remainder in the space of value—formally, a positive holonomy.
- C5. A justice criterion on the dynamics.** The difference between genuine and forged deliberation is the difference between a cycle that returns value to its participants (positive

¹The notion of relational divinity—the descent of legislative, adjudicative, and observance functions back into a relational subject without external outsourcing—is developed in the author’s series on the philosophy of intimacy and the theory of justice. Here it is used only in the deflationary, structural sense made explicit in §4; no theological claim is intended.

holonomy) and one that maintains the appearance of deliberation while extracting value (zero or negative holonomy). Forged deliberation is the use of the affected as mere fuel.

The argument draws on a prior programme that formalises justice as an observable over histories and develops the holonomy criterion for distinguishing good from extractive cycles; we use those results as tools and do not re-derive them here. The contribution of *this* paper is to read Mazouz’s deliberative author through that framework, to supply the ontology her account of authorship calls for, and to specify the dynamical form authorship then takes.

Section 2 reconstructs the perspectival model and isolates the authorship question (A1). Section 3 exhibits the equilibrium assumption hidden in deliberative method and contrasts three candidate attractors. Section 4 supplies the generative-relational ground and the relational account of self-legislation, including its self-grounding structure (A2–A3). Section 5 gives the emergent, holonomic form of justice and the genuine/forged criterion. Section 6 tests the framework on illness and on the intimate trolley problem. Section 7 states what the proposal asks Mazouz to revise and what it secures for her, and answers objections. Section 8 draws the practical-ethical thesis together (A4).

2 The Perspectival Model and the Figure of the Author

Mazouz’s target is the way the three canonical deliberative theories handle the relation of the good to the just. On the *complementarity* model (Rawls), justice is prior and self-standing but requires a thin theory of the good—primary goods—to fill out its content; the good is an external supplement, framed by justice. On the *integration* model (Habermas), only those aspects of the good that admit of general justification are integrated into justice, while the remainder is exiled to a separate “ethical” sphere; the good is filtered, the universalisable admitted and the particular expelled. On the *open complementarity* model (Scanlon), the relation is complementary but left open: no unified theory of the good is required or possible. The three differ in posture but share a defect. In each, the content of the good is fixed by a reconstruction the theorist performs of how persons reason—a *Festsetzung* that is never itself deliberatively connected to those it is meant to orient. The deliberative core is thereby compromised: justice is deliberated, the good is posited.

Mazouz’s remedy is to deny that the just and the good are domains at all. On the *perspectival model* they are two *ways* of assessing one object: the just is the perspective in which the deliberations of others play a constitutive role; the good is the perspective in which they need not. Justice then becomes three-place—a relation among those affected by a judgement, those addressed by it, and those who author it—rather than a content delivered to passive recipients.

The decisive move, for our purposes, is that the affected and the authors must be able to coincide. A theory is fully deliberative only if those whom a judgement of justice orients are among the authors of that judgement; otherwise the theorist re-enters as an external author and the *Festsetzung* returns. This is exactly right. But it leaves a question open—one the model needs answered, and one we take to be answerable.

Claim 2.1 (The authorship question). *The perspectival model requires that the affected party be an author of the judgement that binds her, yet does not on its own say what makes this coincidence stable. Without such an account, self-authored judgement is hard to distinguish from a will revising its own law at will—that is, from the absence of law, or from self-deception.*

The gap is not a detail to be patched. It is the precise point at which a deliberative theory of justice needs an ontology of the subject who can be both author and addressee. Kant’s solution—a noumenal will legislating for a phenomenal self—reintroduces a split that the perspectival model is designed to avoid. We propose a different solution, one that keeps the affected and the author in a single plane by distributing authorship across a relation rather than across a metaphysical division within a single self.

3 The Equilibrium Assumption

Deliberative method in practice—reflective equilibrium, and its clinical cousin casuistry—carries an implicit dynamics. One adjusts back and forth between particular judgements and general principles until incoherence is minimised and the system comes to rest. The governing image is a scalar measure of tension over a space of judgement–principle configurations, with deliberation as descent along its gradient to a fixed point. The endpoint is an *equilibrium*: a state of rest, a settled configuration.

This image is doing more work than it admits. It builds settledness into the very meaning of a successful deliberation: a deliberation has *worked* when it stops. But if value genuinely emerges bottom-up—if no external *Festsetzung* fixes the good in advance—then there is no antecedent potential whose minimum the process must seek, and no reason to expect the dynamics to possess a fixed-point attractor at all. A theory that is serious about emergence cannot help itself to the equilibrium picture for free.

It is worth being explicit about the candidate attractors, because the choice among them is the whole argument in miniature.

Fixed point.

Deliberation converges to a single settled configuration. This is reflective equilibrium. Its cost: settledness is treated as success, and a judgement that refuses to settle is treated as failure rather than as a feature.

Limit cycle.

Deliberation converges not to a point but to a closed orbit—a stable rotation among judgements. This already breaks the equilibrium image, but a bare limit cycle is mere repetition: the system returns to exactly where it was, with nothing gained. It is a circle, not a spiral.

Holonomic spiral.

Deliberation traverses a closed path in the space of judgement configurations, yet accumulates a non-trivial remainder in the space of value. The configuration returns; the value does not. Each circuit sublimates what the last one left. This is the form we will defend.

The holonomic spiral is the only one of the three that honours both halves of the perspectival model. It preserves return—the affected keep coming back to author the same questions—without collapsing return into either a terminal rest (the fixed point, which ends authorship) or empty repetition (the limit cycle, which renders authorship idle). The remainder accumulated per circuit is precisely the trace of authorship having done something.

4 The Generative–Relational Ground

We can now address the authorship question of §2 and, in doing so, meet aims A2 and A3. The coincidence of affected and author is coherent on a generative–relational account of value, on which the subject of justice is not an isolated legislator but a relation in which value is generated and continues itself.

Start from the Kantian worry in its sharpest form. A self that legislates for itself, and that can also revise that legislation, seems to give itself no binding law: whatever it posits today it may repeal tomorrow on the same authority. Solitary self-legislation has no defence against this. Worse, the solitary legislator is structurally a self-deifier: occupying the positions of legislator, judge, and subject at once, with no independent check, it can always rewrite the verdict to suit the impulse. This is not stability; it is self-deception with the form of law.

The relational structure changes the situation at the root. When authorship is distributed across a relation, the three functions—legislation, adjudication, observance—are not collapsed

into one impulse but held apart within the relation itself. Self-adjudication then operates as an internal anti-self-deception mechanism: the verdict one passes on oneself is passed in a relation that one cannot privately revise without the revision becoming visible within the relation. The check is not an external legislator reimposed by another name; it is constitutive of the relational subject. This is why the coherent form of self-legislation is necessarily relational, never solitary. Solitary self-legislation collapses into self-deification; relational self-legislation does not, because the relation keeps the adjudicative function from being quietly absorbed by the legislative one.

This is the additional explanation our framework supplies and Mazouz’s does not (A3). Her account establishes *that* the affected must be authors; it does not exhibit the structure in virtue of which a subject can hold the legislative, adjudicative, and observance functions together without one silently consuming the others. That structure is what we have just described: a self-grounding of the relational subject in which all three functions are returned into the relation rather than outsourced to an external guarantor. In the series from which this paper draws, this self-grounding is named *relational divinity*—not in any theological sense, but as a structural designation for a subject that founds its own law without an external legislator precisely because it is relational rather than solitary.² It is this self-grounding, not any external warrant, that makes the affected-as-author stable.

Two consequences follow.

First, Mazouz’s normative demand is upgraded to an ontological fact. She asks that we *forgo* external *Festsetzung*, as though an external legislator were available and we ought to decline it. On the relational account the external legislator was never a guarantor whose absence leaves a gap; it was a redundant projection—a “big Other” onto which a function that the relation already performs is mistakenly outsourced. The demand to forgo the external stipulation is therefore not an act of normative restraint but a recognition of what was always the case: justice judgements arise from the relation, and the external author adds nothing but the illusion of a guarantee.

Second, value genuinely emerges bottom-up. Because there is no antecedent *Festsetzung*, the content of the good is not delivered top-down and then deliberated about; it is generated within the relation and continues itself. This is what licenses the perspectival model’s central claim that the good is a *perspective* rather than a domain: the good has no fixed content awaiting discovery, only a mode of assessment internal to a relation that keeps producing it.

5 Justice as Emergence, Not Settlement

If justice judgements emerge from a relation rather than descending to a fixed point, the deliberative process must be reconceived. The deliberative-systems literature has already taken the first step, relocating deliberation from the achievement of consensus at a single sitting to a property of a system sustained over time. We take the second step and give that sustained process its dynamical form.

Picture deliberation as motion in a fibre bundle. The base space is the space of judgement configurations—the questions of justice the affected keep returning to. The fibre over each configuration is the space of value the relation has produced there. A deliberation traverses a closed loop in the base: the affected return, again and again, to author the same standing questions. The equilibrium picture demands that this loop shrink to a point. The holonomic picture says, instead, that traversing the loop transports the value-state around the fibre and brings it back *rotated*: a non-trivial holonomy. The configuration of questions returns unchanged; the value carried through them has been sublimated. Return is real, but it is the return of a spiral, not a circle.

This furnishes a criterion that the equilibrium picture cannot state.

²A solitary subject that tried to occupy all three functions would be a self-deifier in the pejorative sense; the point of the term is the opposite—that the only non-self-deceiving form of self-grounding is relational. See the discussion of the descent mechanism of relational divinity in the author’s series.

Claim 5.1 (Genuine vs. forged deliberation). *A deliberation is genuine when traversing its loop accumulates a positive holonomy—when value is returned to the participants who generate it. It is forged when the loop’s holonomy is zero or negative—when the appearance of deliberation is maintained while value is net-extracted from the affected. Forged deliberation uses the affected as fuel for a cycle whose remainder accrues elsewhere.*

The criterion is dynamical, not procedural. A procedure can satisfy every formal mark of deliberation—everyone speaks, reasons are exchanged, a verdict issues—and still be forged, if the standing arrangement returns nothing to the affected and extracts from them across each circuit. The equilibrium picture cannot see this, because it evaluates the endpoint (was a coherent rest reached?) and is blind to the remainder transported around the loop. The holonomic picture evaluates the circuit, and therefore can distinguish a relation that generates and returns value from one that wears the form of deliberation while draining it.

Two clarifications. The fibre-bundle language is a structural analogy, not a claim that deliberation is literally a connection on a literal manifold; its work is to make precise the difference between configuration-return and value-return, which ordinary equilibrium talk elides. And “positive holonomy” is necessary but not sufficient for justice: a cycle can accumulate a remainder and still be unjust if the remainder is purchased by rendering some participant mere fuel. The dynamical criterion (does the cycle generate?) and the justice criterion (is anyone used as fuel?) are orthogonal, and both are required.

6 Test Cases: Illness, Health, and the Trolley in Intimacy

Two hard cases show the difference the framework makes. In each, the equilibrium picture either misdescribes the case or declares it undecidable, while the relational–holonomic picture renders it tractable.

Illness and the distribution of authorship. Consider a judgement of justice—about care, burden, priority—made within a relation one of whose members is ill. The liberal instinct is to treat the ill party as an affected recipient whose good is to be supplied (the complementarity model in miniature). But illness is precisely the condition in which a person *cannot* be the solitary author of her own good: her capacities to deliberate, to project, to revise are themselves impaired. On the solitary picture this looks like a failure of authorship that must be made up by an external decision on her behalf—the carer, the clinician, the institution, re-entering as external legislator. On the relational picture, authorship was never solitary to begin with. The care relation is not a substitute for the patient’s lost authorship but the site across which authorship was always distributed; illness makes visible what was already true. The just judgement is then neither supplied to the patient nor extracted from her but authored in the relation that includes her—and the holonomy criterion tells us when a care arrangement is genuine (value returns to the patient and the relation) versus forged (the form of shared decision is maintained while the patient is net-extracted from). The equilibrium picture cannot represent the patient as co-author of a judgement she lacks the solitary capacity to settle; the relational picture can.

The trolley problem inside an intimacy. The numbers problem asks whether, and how, numbers count in morality. The trolley problem is its dramatised form. Both presuppose that the parties on the track are countable, interchangeable units, so that the question is one of aggregation. Inside an intimate relation this presupposition fails. The beloved is not one unit among interchangeable units; the relation is constituted by the non-substitutability of its members. Asked to weigh the beloved against a greater number of strangers, the intimate subject does not confront a harder instance of the same aggregation problem—she confronts the breakdown of aggregation as such, because the very quantity “number of persons” is not

the quantity her judgement is about. This is not a sentimental refusal to do the math; it is a structural fact about the space in which the judgement lives. There is no neutral switch-operator standing off the track, because the relational subject is *on* the track: she is constituted by the relation she is being asked to trade away. The equilibrium picture, seeking a settled aggregate, declares the case either undecidable or solvable only by denying the relation. The holonomic picture asks the right question instead: not which sum is larger, but whether the judgement, authored within the relation, returns value to it or extracts the relation as fuel for an external sum.

7 What the Proposal Asks of Mazouz, and What It Secures

Our proposal is a friendly amendment, not a refutation. It preserves what is most distinctive in the perspectival model and asks for one revision in exchange.

What it secures. Mazouz’s deepest commitment is the elimination of external *Festsetzung*: no theorist’s reconstruction of the good may be imposed on those the theory orients; the affected must be authors. We do not weaken this; we secure it. By grounding authorship in a relation rather than in a solitary will, we explain why the affected *can* be authors without the theorist re-entering through the back door. The perspectival model’s central intuition—that the just and the good are perspectives on one object, not two domains—is also preserved and explained: it holds because the good has no fixed content awaiting external specification, only a mode of assessment internal to a generating relation.

What it asks. The one revision is to the equilibrium picture. A deliberative theorist who wants the affected to be genuine authors has reason not to also want deliberation to terminate in a settled rest, because termination ends authorship: a question that is settled is a question no longer being authored. The choice between the fixed point and ongoing authorship is, we think, not really a sacrifice for the perspectival model, which already leans toward the second; the revision makes it consistent with itself.

We register three objections.

From deliberative systems. “The systemic turn already replaces the single-sitting consensus with an ongoing process; nothing more is needed.” We agree it takes the first step. But “ongoing” is not yet a dynamical form: an ongoing process can still be modelled as relaxation toward a moving equilibrium, which re-imports settledness as a limit. The holonomic spiral is a specific claim—configuration returns, value does not—that the generic appeal to “process” does not make, and it is that specific claim that yields the genuine/forged criterion.

From the right to justification. A Forstian will say the work is already done by a basic right to justification: every affected party may demand reasons, and that suffices to make her an author. This is the closest neighbour to our view, and we take it as an ally rather than a rival. But a right to demand reasons is a normative entitlement; it does not by itself explain how the demander can be *author* of the verdict that binds her without collapse. The entitlement names the gap of §2; the relational ground fills it. One step further than Forst: authorship is not only a right held against others but a structure distributed across a relation.

From value pluralism. An Andersonian will say the perspectival model needs only the thesis that values are plural and expressive—assessed in different modes, not measured on one scale—and that no dynamics is required. We borrow this thesis; the just and the good as “perspectives” is the expressive-pluralist thought in Mazouz’s idiom. But pluralism about the *modes* of assessment is silent about the *temporal form* of assessment, and it is the temporal form—return without rest, remainder without repetition—that distinguishes a relation that generates value from one that extracts it. Pluralism tells us there are several perspectives; the holonomy criterion tells us when occupying them is genuine.

Across all three: our addition is not a new normative principle stacked on the perspectival model but an account of the *ontological* and *dynamical* conditions under which that model’s

own commitments are satisfiable. The deliberative author is not a primitive we may assume; she is an achievement of a generative–relational structure with a spiral form.

8 Conclusion

We have argued for five connected claims. The perspectival model leaves the figure of the author in need of grounding (C1). Authorship is coherent only when distributed across a relation, where self-adjudication blocks the collapse into self-deception that defeats solitary self-legislation (C2). On that footing, the demand to forgo external stipulation becomes the recognition that the external legislator was always redundant (C3). The dynamical form of such authorship is not a fixed-point equilibrium but a holonomic spiral—return of the configuration without return of the value (C4)—and the difference between genuine and forged deliberation is the sign of the holonomy: value returned versus value extracted (C5). Illness and the intimate trolley problem, undecidable on the equilibrium picture, become tractable once authorship is relational and the relevant quantity is the remainder transported around the loop rather than the height of a settled sum.

These claims converge on the positive thesis this paper set out to advance (A4). Ethical and justice judgements are not handed down from an external conception of the good and then deliberated about; they emerge bottom-up from generative–relational existence. Their form of reason is relational self-legislation: the affected, as authors, give themselves the law within a relation whose self-grounding keeps legislation honest. And their proper dynamics is generativity, not settlement—a spiral that returns to its questions while carrying value forward, rather than a descent to rest. This is a practical ethics in the strict sense: it tells us not which verdicts to hold but how to go on holding ourselves answerable, together, without outsourcing the answer.

It bears emphasis that self-legislation is not a foreign principle we have imported into Mazouz’s theory. It is what her own concept of the author demands once that concept is pressed: an affected party who is genuinely an author of the judgement that binds her is a self-legislating subject, and a self-legislating subject is coherent only relationally. The perspectival model, followed to its own conclusion, arrives at the generative–relational ground. We have not added a storey to the building; we have shown what it stands on.

Finally, a word on why this paper offers no synthesising formula that settles the matter. To close with a fixed conclusion would be to commit, in the form of the argument, the very error the argument diagnoses in its content: to treat settledness as success. What the framework underwrites is not a verdict but a way of going on—authoring, returning, accumulating the remainder—without rest and without repetition. That is the only form in which authorship survives its own exercise.